

ASCII MASTER FLOW – PANEL 1/10: The central question of the individual-state relation and its vocabulary

CENTRAL QUESTION -> on what terms may organised public authority BIND a person,
and what may that person CLAIM, OWE and DEMAND in return?

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THREE LINKED IDEAS: RIGHTS (justified claims) | DUTIES (what is owed)
| ACCOUNTABILITY (power that must answer)

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INDIVIDUAL
agency, dignity,
interests, moral
standing

v

SOCIETY
whole web of
cooperation;
civil society =
voluntary bodies

v

GOVERNMENT
the organ that
exercises public
authority NOW;
transient

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STATE
organised public
authority claiming
binding power over
a territory

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WHY A STATE -> order and security | rights protection | public goods
-> justice and welfare | collective action

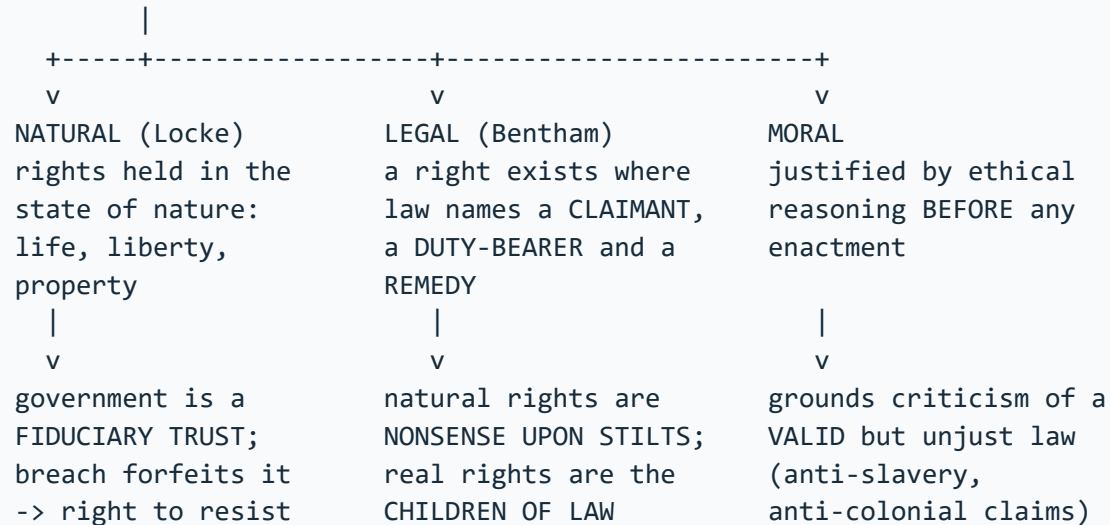
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BUT the protector can DOMINATE -> power must be JUSTIFIED, LIMITED, ANSWERABLE
LEGITIMACY (a right to rule subjects have reason to accept) vs COERCION (a gang)
SPECTRUM -> minimal | welfare-enabling | socialist | totalitarian | stateless
CONTROL -> define the terms FIRST, locate on the spectrum SECOND, adjudicate LAST.

ASCII MASTER FLOW – PANEL 2/10: Grounding a right: nature, law and the critical moral register

QUESTION -> a right is a JUSTIFIED CLAIM, LIBERTY, POWER or IMMUNITY: why is it owed?



PRESUPPOSITIONS -> intrinsic moral status | institutional enforceability

-> standards of justice not exhausted by positive law

TRAP -> Bentham rejects NATURAL rights, not legal rights; legal validity is never the same thing as moral legitimacy.

VERDICT -> a mature order needs all three registers: nature grounds, law enforces, morality judges.

ASCII MASTER FLOW – PANEL 3/10: The structure of a right and the correlativity verdict

INCIDENT	CORRELATIVE	OPPOSITE	WHAT IT ACTUALLY ENTAILS
CLAIM-RIGHT	duty	no-right	a STRICT duty-partner exists
LIBERTY	no-right	duty	NO positive duty to assist me
POWER	liability	disability	I can alter legal relations
IMMUNITY	disability	liability	you cannot alter my status

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WHAT DOES A RIGHT PROTECT?

WILL THEORY -> control over another's duty; fits autonomy; fails for children

INTEREST THEORY -> protection of a vital interest; fits welfare; underplays agency

-> most working systems run a MIXED account

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HOW FAR DOES IT TRAVEL? HUMAN RIGHTS owed to all simply as human beings

UNIVERSALIST -> equal worth; protection from cruelty is a common aspiration

RELATIVIST -> personhood, authority and obligation are read through culture

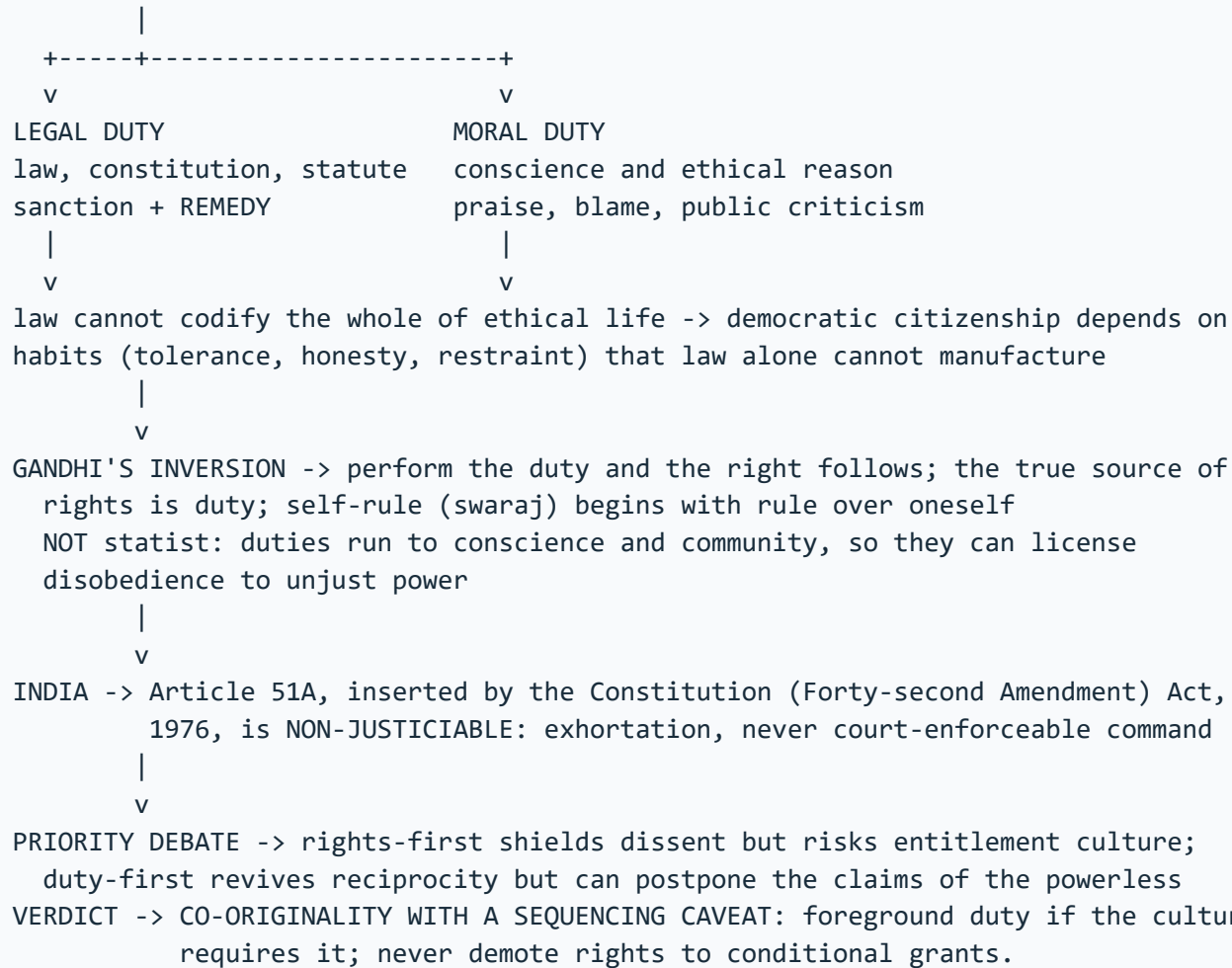
BALANCE -> universality of ASPIRATION need not mean uniformity of ARTICULATION

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CORRELATIVITY VERDICT -> conceptual for claim-rights, institutional for the rest;
normatively necessary, not a one-to-one logical identity.

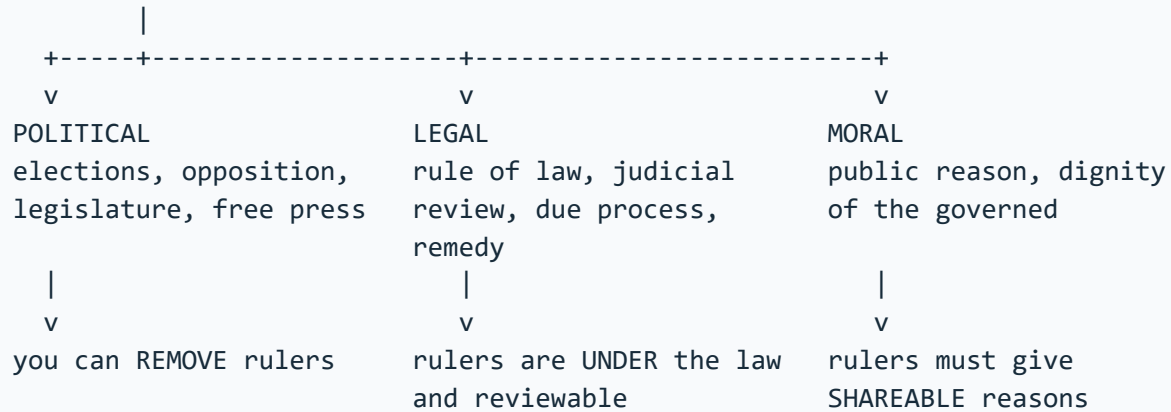
ASCII MASTER FLOW – PANEL 4/10: Duties, the inversion of the usual order, and the priority verdict

DUTY = what is OWED to persons, community and institutions -- not mere obedience



ASCII MASTER FLOW – PANEL 5/10: Accountability: three channels and the direction the examiner tests

PREMISE -> the state claims COERCIVE authority, so each act must be explicable to those bound by it



TOGETHER -> power becomes AUTHORITY. Remove all three -> DOMINATION.
Elections alone -> formal answerability with substantive domination.

DIRECTION CORRECTION -> a stem may assume: citizen answerable TO the state.

Rights principally make the STATE answerable to citizens (Locke's fiduciary trust cashed out as judicial review and periodic elections).

CONCEDE -> rights also generate RESPONSIBILITIES (free speech, duty not to defame)

VERDICT -> RECIPROCAL accountability; keep ACCOUNTABILITY (answering for power) apart from RESPONSIBILITY (duties that accompany a right).

ASCII MASTER FLOW – PANEL 6/10: Liberal, idealist and contractarian pictures of the same relation

THINKER	STATE OF NATURE	THE BARGAIN	RESISTANCE
HOBBS	war of all against all	near-total transfer for security	almost none: bare self-preservation
LOCKE	governed by natural law; rights precede government	LIMITED govt as a fiduciary TRUST	YES, on breach of trust
ROUSSEAU	free but corrupted by inequality	surrender to the GENERAL WILL	self-rule through the general will

RULE -> the deal follows from the DIAGNOSIS; change the premise, change the state.

LIBERAL	IDEALIST	MARXIST (as relation-theory)
person prior; state instrumental; limited government and a private sphere	family -> civil society -> STATE = actuality of ethical life (Hegel); GREEN removes hindrances	base shapes superstructure; state as class instrument; formal rights can mask real unfreedom
RISK: atomism	RISK: deifying the state	RISK: undervalued liberties
ROUSSEAU'S HINGE -> forced to be free is defensible only with his own conditions: equality, generality of law, absence of factions.		
ADEQUACY VERDICT -> contract grounds limits and consent, yet abstracts from real inequality, so human rights need a supplement beyond the contractors.		

ASCII MASTER FLOW – PANEL 7/10: Radical and situated critiques and the unconditional-rights charge

CRITIQUE	CHARGE	REPLY / RESIDUAL
philosophical anarchism	the state's right to rule is presumptively illegitimate	keeps the QUESTION, rejects the stateless conclusion: who adjudicates, defends, coordinates at scale?
Marxist welfare	equal legal rights coexist with material domination formal liberty is empty without means	do not abolish rights; back them with real capabilities a social minimum ENLARGES effective freedom; counter- cost is bureaucracy
communitarian feminist	the self is socially constituted, not pre-social the abstract individual hides dependence and private power	membership and common goods must still protect dissent care, dependence and the personal as political

GANDHI'S CIRCLES -> individual at the centre; each outer ring SERVES the inner;
decentralised, duty-bound, non-violent -- therefore NOT Western anarchism.

DOES UNCONDITIONAL RIGHTS-TALK LEAD TO ANARCHY?

distinguish UNCONDITIONAL from INALIENABLE -> rights are inalienable yet

LIMITABLE (equal rights of others, harm constraints, public order, adjudication)

VERDICT -> bounded rights do NOT entail anarchy; only a naive absolutism would.

ASCII MASTER FLOW – PANEL 8/10: Political obligation: six grounds driven through four tests

PROBLEM -> is there a MORAL duty to obey the law BECAUSE it is law?

not fear (a gunman obliges without obligating) | not agreement with content

| not legal validity (a separate, jurisprudential question)

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FOUR TESTS -> GENERALITY | PARTICULARITY | CONTENT-INDEPENDENCE | DEFEASIBILITY

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CONSENT
Locke, Hobbes,
Rousseau

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FAIR PLAY
Hart, Rawls

v

NATURAL DUTY
Rawls

v

ASSOCIATIVE
Dworkin

v

GRATITUDE
classical

v

ANARCHISM
Wolff,
Simmons

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tacit consent
from residence
is not truly
voluntary

v

unavoidable
benefits
cannot bind
(Nozick)

v

fails
PARTICULARITY
-> binds me
to ANY just
state

v

membership
may be
unjust and
unchosen

v

benefactor
may also
oppress

v

no general
duty is
established

|

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RAZ, SERVICE CONCEPTION -> authority is legitimate when its directives help

subjects conform to reasons that already apply; directives are PRE-EMPTIVE

DWORKIN, TAKING RIGHTS SERIOUSLY (1977) -> rules apply all-or-nothing, PRINCIPLES

have WEIGHT; hard cases are decided by principle; RIGHTS ARE TRUMPS

TRAP -> never give the service conception to Simmons or anarchism to Raz.

ASCII MASTER FLOW – PANEL 9/10: The ladder of refusal and the Indian constitutional limit

IF the duty to obey is DEFEASIBLE, when is refusal justified? -- refusal is GRADED

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[1] LEGAL DISSENT ----- within the law: speech, vote, petition, litigation

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[2] CONSCIENTIOUS OBJECTION -- personal EXEMPTION; may be private; accepts the
penalty; accepts the system's legitimacy

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[3] CIVIL DISOBEDIENCE ----- ESSENTIALLY PUBLIC appeal to shared principles;
NON-VIOLENT; deliberate breach; ACCEPTS THE PENALTY;
affirms the rule of law while contesting one law

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[4] RESISTANCE -> REVOLUTION - withdraws allegiance from acts, or from the whole
order; gravest bar of justification

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CONDITIONS FOR RUNG 3 -> seriously unjust law | channels exhausted or blocked
| open and non-violent | penalty accepted | nearly just society (Rawls)

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ANCHORS -> Thoreau, Civil Disobedience, 1849 (individual refusal, not a campaign)
-> Salt Satyagraha, 1930 (announced, non-violent, arrest accepted)
-> Ambedkar, Constituent Assembly, 25 November 1949: once constitutional
methods exist, unconstitutional methods are the GRAMMAR OF ANARCHY

INDIA -> Articles 19(1)(a) and 19(1)(b) protect PROTEST subject to reasonable
restrictions under 19(2) and 19(3); there is NO right to break the law.

TENSION -> Gandhi assumes no constitutional voice, Ambedkar assumes there is one;
the live question is whether channels are genuinely open to THAT group.

ASCII MASTER FLOW – PANEL 10/10: The answer engine: staged debates, trap bank and the graded verdict

SIX-MOVE SPINE FOR ANY STEM ON THIS CLAUSE

[1] DEFINE the key term -> right | duty | accountability | obligation | liberty

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[2] LOCATE on the spectrum -> minimal | welfare | socialist | totalitarian |
stateless

v

[3] STATE the rivals -> liberal | idealist | contract | Marxist | anarchist |
Gandhian

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[4] OBJECTION -> REPLY on the STRONGEST rival, never one-sided

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[5] INDIA EVIDENCE BY POSITION -> Article 51A / 42nd Amendment 1976
(non-justiciable) | Article 19 reasonable restrictions | 1930 | 1949 |
judicial review

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[6] GRADED VERDICT -> neither an atom outside society nor a cell inside the state

DEBATES YOU MUST BE ABLE TO STAGE

Hobbes vs Locke on resistance | Locke vs Rousseau on the will

liberal vs communitarian on the self | liberal vs idealist on freedom

Gandhi vs Western anarchism | Aristotle vs Plato on statism and individualism

TRAP BANK -> state is not government | Bentham is not anti-all-rights

| Article 51A is not enforceable | India has CONSTITUTIONAL supremacy, not
parliamentary sovereignty | never fabricate a case, article, quotation or date

REVISION RULE -> a twenty-marker is won in paragraphs four and five, where the
criticism of your OWN thesis is voiced before the verdict is delivered.